

Anwari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 December 2020 · WRIT - C No. 18728 of 2020 · **Writ disposed of; relegated to clause 6.5 representation.**

HEADNOTE

On a writ seeking quashing of a bill-cum-disconnection notice, the consumer also asking that her name be substituted after her husband's death, the Division Bench did not examine the bill on merits. It accepted that the appropriate remedy was a representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 and disposed of the petition by directing the Executive Engineer to decide any such representation expeditiously.

FACTUAL SUMMARY

Anwari petitioned the Allahabad High Court to quash an electricity bill-cum-disconnection notice dated 3 December 2019 issued by the distribution licensee. She stated that her husband had died, that her name needed to be incorporated in the bill, and that there was a dispute about the billed amount. Licensee's counsel submitted that the proper course was a representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

internal representation on billing and disconnection

HOLDING

Where a consumer seeks quashing of a bill-cum-disconnection notice and substitution of her name after the recorded consumer's death, the High Court may dispose of the writ without a merits examination by directing that if she files a fresh representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer (with a copy of the order), that authority shall decide it expeditiously. ¶ 1

PRINCIPLE TAGS

6.5-representation-as-appropriate-remedy The Court treated clause 6.5 as the appropriate internal remedy for a name-substitution and billing dispute raised against a bill-cum-disconnection notice, and disposed of the Article 226 petition by directing an expeditious decision on a fresh 6.5 representation rather than quashing or upholding the notice. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 03.12.2019 BILL-CUM-DISCONNECTION NOTICE

Writ disposed of without examining the bill or disconnection on merits. ¶ 1

NOT DECIDED — SUBSTITUTION OF THE PETITIONER'S NAME AS CONSUMER AFTER HER HUSBAND'S DEATH

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